



DATA FOR GOOD

August 19, 2026

Dear FOIA Officer,

This responds to ICE's clarification letter sent August 12, 2026 re: FOIA request 2026-ICFO-31191. The clarifications below are provided to move the request forward. They are not a concession that the original request failed to reasonably describe the records sought, and they are not intended to narrow the request except where a closed date range is expressly supplied.

The original request identified nine facility addresses, supplied alternate facility names used in ICE records, identified the specific document types sought, and cited the DHS NEPA implementing procedures under which those documents are created. That description permits a professional employee familiar with ICE's environmental compliance and detention programs to locate responsive records with a reasonable amount of effort, which is the standard FOIA imposes. A requester is not required to identify an agency's internal filing systems, record custodians, or search terminology.

With that reservation noted, I provide the following.

Date range. The request is limited to records prepared, received, completed, or dated between July 1, 2025 and June 1, 2026, inclusive.

Organizational scope. Please search the ICE office responsible for environmental planning and NEPA compliance, including the Environmental Planning Program Manager designated under DHS Directive 023-01; the office responsible for real property and facilities management; Enforcement and Removal Operations custody management and the field offices covering the listed sites; and the Office of Acquisition Management, including contracting officers and CORs for the associated detention and environmental services contracts. This list assists the search and does not limit it.

Communications search. Custodians by title: the Environmental Planning Program Manager and any deputy or acting holder; environmental protection specialists or NEPA coordinators assigned to detention projects; the facilities official responsible for detention site acquisition and renovation; contracting officers and CORs for the listed sites; ERO custody management officials responsible for detention facility planning.

Systems: ICE email including archived mail, Microsoft Teams, SharePoint and shared drives used by the environmental compliance and facilities functions, and any environmental compliance tracking system or project file for the listed sites.

Terms, alone and combined with the facility names and addresses in the original request: NEPA, National Environmental Policy Act, categorical exclusion, CATEX, record of environmental consideration, REC, environmental assessment, finding of no significant impact, FONSI, environmental impact statement, notice of intent, notice of availability, scoping, 023-01, environmental review, extraordinary circumstances, administrative record.

Severability. The document categories sought, including RECs, categorical exclusion determinations, environmental assessments, findings of no significant impact, environmental impact statements, notices, scoping materials, and technical studies, do not depend on custodian or search term information. They are severable from the correspondence category. If ICE cannot process the correspondence portion, please process and release the remaining categories rather than holding the request.

Third-party firms. I do not know which firms ICE engaged for these sites. That information is in ICE's contract files. If vendor identifiers are needed, please obtain them from those files, or search for correspondence containing the terms above sent to or received from any non-dhs.gov domain.

Custody and control. Confirmed. I seek only records in ICE's possession or control as of the date of the search, including ICE-held copies of records originating with third parties. I do not seek records held solely by non-ICE entities.

Administrative. Please do not administratively close this request. The tolled response period resumes on receipt of this letter, and FOIA permits tolling for clarification once. I reiterate my fee waiver request and news media requester category. Please confirm receipt and provide an estimated completion date.